



Contract Number: 009786

MASTER DATA SERVICES SUBSCRIPTION AGREEMENT

This Master Data Services Subscription Agreement (the “**Agreement**”) is dated as of 12/08/2022 (the “**Effective Date**”), and is made by (i) Rekor Recognition Systems, Inc. (“**Rekor**”), with an address of 6721 Columbia Gateway Drive, Suite 400, Columbia, MD 21046 and (ii) Plantation Police Department (“**Customer**”), with an address of 451 NW 70th Terrace Plantation, FL 33317. Each of Rekor and Customer is referred to herein as a “**Party**” and collectively, the “**Parties**”.

*Whereas, Rekor provides software as a service to end-users in order to analyze video stream data and perform various calculations and outputs, (the “**Services**”),*

Whereas, Customer desires to engage Rekor to implement, operate and provide the Services to Customer in accordance with the terms and conditions stated within the Agreement,

*Whereas, Customer also desires to engage Rekor to deploy, operate, and maintain certain optical sensors and related equipment, including associated processors, communications devices, brackets, and other hardware (the “**Equipment**”) related to its provision of the Services to Customer,*

Now, therefore, in consideration of, and conditioned on, the covenants, terms and conditions stated and incorporated herein, and for other good and valuable consideration, the receipt and sufficiency of which the Parties hereby acknowledge, the Parties agree as follows:

1. **Term:** The term of the Agreement shall begin on the Effective Date, and unless earlier terminated in accordance with Sections 16 or 17, shall continue until the latest expiration date of all schedules (each, a “**Schedule**” and collectively, the “**Schedules**”) in effect, (the “**Term**”).
2. **Permission to Access and Use Services.** Subject to Customer’s timely Payments (as defined in Section 7), Rekor hereby grants to Customer, solely for Customer’s own internal use, non-transferable, non-assignable, non-exclusive permission to access and use the Services provided by Rekor to Customer. Customer shall use the Services exclusively for its own operational purposes and shall not copy the Services in any form, whether in whole or in part, and shall not incorporate the Services, whether in whole or in part, or any related components thereof including documentation, into any product for distribution or use by any third party. Except for the rights enumerated in this Agreement, the permission hereby granted to Customer does not include a grant to Customer of any other rights to, title, ownership, security interest, or other interest, in any intellectual property of Rekor.
3. **Title to the Services.** The Services are proprietary to Rekor. Rekor shall retain exclusive right, ownership, title and interest in and to the Services, including all intellectual property rights. All applicable rights to patents, copyrights, trademarks and trade secrets in the Services or any modifications made at Customer’s request are and shall remain in Rekor. Customer agrees to secure and protect the Services and all related components thereof including documentation in a manner consistent with the maintenance of Rekor’s rights therein and to take appropriate action by instruction or agreement with its employees or consultants who are permitted access to the Services to satisfy its obligations hereunder. Customer agrees not to modify the Services or create derivative works thereof.



Violation of any provision of this Section 3 shall be the basis for immediate termination of this Agreement.

4. The Equipment. Rekor shall deploy the Equipment and shall be responsible for all costs related to the Equipment and its installation, operation, maintenance, and, solely at Rekor's discretion, shall adjust, calibrate, or upgrade the Equipment. At its sole discretion, Rekor or its affiliates may install additional Equipment at no additional cost to the Customer. Customer shall provide Rekor with access to the infrastructure necessary to facilitate the performance under this Agreement. This access includes, but is not limited to, power, network and internet connectivity and applicable regulatory permitting. Any cost for the initial power connection and monthly power service are the responsibility of the customer. Services such as construction, engineering drawings, or other activities beyond basic permit applications would incur an extra charge. Rekor and its affiliates shall retain exclusive right, ownership, title and interest in and to the Equipment. With respect to the existing physical locations where the Equipment will be installed, Customer warrants possession of the right and sufficient authority to approve the installation of the Equipment
5. Warranty. Customer understands and agrees that the Services and Equipment are provided "as-is" and "as available," without express or implied warranty or condition of any kind. Rekor makes no representations and disclaims any warranties or conditions of satisfactory quality, merchantability, fitness for a particular purpose, or non-infringement. Rekor takes no responsibility and assumes no liability for Customer's use of the Services or Equipment.
6. Data Rights: The data, images, and video produced from using the Services is the "Operational Data." Customer retains all rights and ownership in the Operational Data, and Rekor does not claim any ownership rights in the Operational Data. Customer grants Rekor the right and license to use the Operational Data for: a) dissemination to other government entities, and b) training and performance enhancement of Rekor's AI system. For purposes of this Section 6, Operational Data from which the license plate characters have been removed, is the "De-Identified Data". Customer acknowledges and agrees that Rekor may use the De-Identified Data for any purpose and may disclose the De-Identified Data to third parties. Customer must inform Rekor in writing before using the Services if the laws of the jurisdiction in which you use the Services restrict the use of Operational Data or De-Identified Data for the purposes defined in this Section 6.
7. Payments. During the period in which the Agreement and each Schedule is effective, the Customer shall deliver to Rekor payments of the amount and frequency set forth in the related Schedule (the "Payments"). The Payments are due whether or not the Customer has received notice that a Payment is due.
8. Services Charge; Fees: If any payment is not paid within five (5) days after the due date, Customer shall pay to Rekor a service charge of 5% of the payment due per month which shall accrue monthly until the outstanding balance is paid in full.
9. Collection Costs: If Customer fails to make any payments due under the Agreement and Rekor retains the services of a collection agency or an attorney to collect such amounts, Customer agrees to promptly



pay Rekor all reasonable costs of collection, including, but not limited to, any collection agency fees, reasonable attorney's fees, and court costs.

10. Tax. Customer shall pay all taxes, including any applicable sales or use tax, and all other fees or charges on or arising out of Rekor's delivery of Services to the Customer; however, the Customer will not pay any federal or state income taxes, franchise taxes, or any other taxes imposed on Rekor's net income.
11. Notices: All notices, requests, consents, claims, waivers and other communications (collectively, "Notices") hereunder shall be sent to the addresses set forth in the preamble of the Agreement and/or email set forth on the signature page to the Agreement or such other addresses and/or email as a Party gives from time to time. All Notices shall be deemed to have been given (a) when delivered by hand; (b) when received by the addressee if sent by a nationally recognized overnight courier (receipt requested); (c) on the date sent by facsimile or email, if sent during normal business hours of recipient, and on the next business day if sent after normal business hours of recipient or (d) on the third day after the date mailed, by certified or registered mail, return receipt requested, postage prepaid. All Notices hereunder may be given by any other means, but shall not be deemed to have been duly given unless and until it is actually received by the intended recipient.
12. Entire Agreement and Modification: The Agreement (including the Schedules hereto) constitutes the entire agreement and understanding among the Parties hereto with respect to the subject matter hereof and supersedes all prior agreements and understandings, whether written or oral, relating to such subject matter in any way to the subject matter hereof or thereof. No modification, waiver or amendment of the Agreement shall be effective unless in writing and signed by both Parties. The Agreement replaces any and all prior agreements between the Parties with respect to its subject matter. Waiver by a Party of any provision of the Agreement does not constitute, and is not to be construed as constituting, a waiver of such provision (or any other provision) at any other time.
13. Governing Law: The Agreement shall be governed and construed in accordance with the laws of the State of Maryland, without application of any principle of Maryland law which would require that the Agreement be governed and construed by the laws of any other jurisdiction.
14. Press Release and Customer List Reference: Rekor and its subsidiaries (collectively, "**Rekor**") are each permitted to issue a press release announcing that Customer has retained Rekor to provide the Services. Rekor may reference Customer and generally describe the nature of the Agreement in Rekor's promotional materials, presentations, and proposals to current and prospective Customer.
15. Confidentiality: Customer agrees that it shall not disclose to any third party any information concerning the trade secrets, methods, processes or procedures or any other confidential, financial or business information of Rekor which should be reasonably understood to be confidential or non-public, whether or not such information is marked confidential, which Customer learns, directly or indirectly, or which is made available to Customer, as a result of the Agreement, without Rekor's prior written consent. Customer shall promptly notify Rekor in the event Customer becomes aware of any actual or purported loss or disclosure of any information covered by the prior sentence. If Customer is required by a legal



or administrative process, including but not limited to, applicable law, regulation, order, or similar process, to disclose any information covered by the first sentence of this Section 15, Customer shall promptly notify Rekor of such requirement (if such notification can be made without violating the terms of such required disclosure), so that Rekor may seek an appropriate protective order or waive compliance with the Agreement. Customer agrees not to oppose any effort by Rekor to resist or narrow such requirement or to seek a protective order or other appropriate remedy. If, in the absence of a protective order or the receipt of a waiver hereunder, Customer is, in the opinion of its legal counsel, required to disclose such information, Recipient may disclose only such information to the party requiring disclosure as is required by law, regulation, order, or similar process. In connection with such required disclosure, Customer shall use its reasonable efforts, at Rekor's request and expense, to obtain from the party to whom disclosure is made written assurance that confidential treatment will be accorded to such portion of the information as is disclosed.

16. Default: The occurrence of any of the following shall constitute an event of default under the Agreement ("Event(s) of Default"):

- a. The failure to make a required payment under the Agreement and each related Schedule when due.
- b. The violation of any provision or requirement under the Agreement (other than making required payments) that is not corrected within ten (10) days after notice of the violation is given.
- c. The insolvency of Customer.
- d. The voluntary or involuntary commencement of a proceeding in bankruptcy or receivership against Customer or its property; a general assignment for the benefit of creditors by Customer or if Customer enter into an agreement or composition with its creditors; if Customer is dissolved or otherwise discontinued; or if Customer ceases doing business as a going concern.
- e. The subjection of any of Customer's property to any levy, seizure, assignment, application or sale for or by any creditor or government agency.
- f. The existence of any encumbrance on the Services or Equipment that has not been approved by Rekor in writing.
- g. If any application, certificate, statements, trade references, representations and/or financial reports furnished by Customer and submitted to Rekor proves to be false in any material respect.

17. Rights on Default: Upon the occurrence of any Event of Default, Rekor may, after any applicable cure period, without further notice to Customer, and in Rekor's sole discretion, exercise any one or more of the following remedies:

- a. Declare Customer's obligations hereunder immediately due and payable and recover as liquidated damages and not as a penalty an amount equal to reasonable attorneys' fees plus any charges, costs, expenses, interest or penalties properly assessable against Customer pursuant to the provisions of the Agreement or any other agreement(s) between the parties;
- b. enforce performance by Customer of the applicable covenants and terms of the Agreement or recover damages for the breach thereof;



- c. terminate the Agreement and each related Schedule, terminate the Services and associated documentation, with or without demand or notice to Customer and without order of court or other legal process, and without incurring any liability to Customer for any damages incurred by reason of such taking; and/or
- d. any other remedies available in law or at equity.

No failure or delay on the part of Rekor to exercise any remedy hereunder shall operate as a waiver. No express or implied waiver by Rekor of any default shall constitute a waiver of any other default by Customer or waiver of Rekor's rights. No remedy is intended to be exclusive, but each shall be cumulative and concurrent to the extent permitted by law and shall be in addition to any other remedy otherwise available to Rekor at law or in equity.

18. Effect of Termination: Expiration, termination or cancellation of the Agreement and related Schedules shall not affect rights, obligations or liabilities of the parties which accrue prior to such expiration, termination or cancellation. Upon expiration, termination or cancellation of the Agreement, all rights, access and authorizations granted to Customer hereunder will immediately terminate. The provisions of Sections 6, 8-13, 15, 21, and 22 of this Agreement shall survive termination of the Agreement and related Schedules.
19. Log-In Information; Individual Use: To gain access to and use the Services, Customer may be required to create a username and password or other log-in ID and password ("Log-In Information"). Customer is responsible for all activity occurring under its Log-In Information, and Customer must keep its Log-In Information confidential and not share such Log-In Information with other individuals or third parties other than those with a business need to know. Rekor has no obligation or responsibility with regard to Customer's use, disclosure, or management of Log-In Information. Rekor may require Customer to change its Log-In Information if such Log-In Information is inconsistent with the terms of the Agreement. Notwithstanding anything set forth in the Agreement to the contrary, Rekor makes Services available to Customer for only its use and not for use by any third party.
20. Assignment, Sublease or Sublicense by Customer: Customer shall not assign, sublet or sublicense any interest in the Agreement, the Services or the Equipment, or permit the Services to be used by anyone other than Customer or Customer's employees, without Rekor's prior written consent. Any such assignment, sublet, or sublicense by the Customer without the prior written consent of Rekor shall be null and void. Rekor in its sole discretion, reserves the right to assign this Agreement in parts or in its entirety.
21. Investigations: If Rekor becomes aware of any possible violations by Customer of any provision of the Agreement, Rekor reserves the right to investigate such violations. If, as a result of such investigation, Rekor believes that criminal activity has occurred, Rekor reserves the right to refer the matter to, and to cooperate with, any and all applicable law enforcement authorities. Except to the extent prohibited by applicable law, Rekor is entitled to disclose any information in Rekor's possession in connection with Customer's use of the Services, and under any provision of the Agreement, to (a) comply with applicable law, legal process or governmental request; (b) enforce the Agreement; (c) respond to any claims or rights of third parties; (d) respond to Customer's requests for customer services; or (e) protect



the rights, property or personal safety of Rekor, its users or the public, and law enforcement or other government officials, as Rekor in its sole discretion believes to be necessary or appropriate. Customer is solely responsible for its familiarity and compliance with any laws that may prohibit Customer from participating in or using any part of the Services.

22. Submission to Jurisdiction; Consent to Service of Process; Waiver of Jury Trial: Each Party hereby irrevocably submits to the exclusive jurisdiction of the state and federal courts of the State of Maryland for the purposes of any suit, action or other proceeding arising out of or relating to the Agreement and agrees that all claims in respect of the suit, action or other proceeding may be heard and determined in any such court. Each Party agrees to commence any such suit, action or other proceeding either in the state or federal courts of the State of Maryland. Each Party waives any defense of improper venue or inconvenient forum to the maintenance of any action or proceeding so brought and waives any bond, surety or other security that might be required of any other party with respect thereto. Any Party may make service on any other Party by sending or delivering a copy of the process to the Party to be served in the manner provided for the giving of notices in Section 11. Nothing in this Section 22, however, shall affect the right of any Party to serve legal process in any other manner permitted by law or at equity. Each Party agrees that a final judgment in any action or proceeding so brought shall be conclusive and may be enforced by suit on the judgment or in any other manner provided by law or at equity. EACH OF THE PARTIES HEREBY IRREVOCABLY WAIVES ANY AND ALL RIGHTS TO TRIAL BY JURY IN ANY ACTION ARISING OUT OF OR RELATING TO THE AGREEMENT.
23. Severability: If any portion of the Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of the Agreement is invalid or unenforceable, but that by limiting such provision, it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.
24. Schedules: Except to the extent expressly modified by the Agreement, the Parties by their execution and delivery hereof, affirm and incorporate herein by reference all of the terms, covenants and conditions of the Schedules and terms and conditions expressly referenced herein as if such terms, covenants and conditions were fully set forth in the Agreement.
25. Relationship of the Parties: Rekor (and any affiliate thereof providing Services hereunder) is an independent contractor and service provider to Customer, and the Agreement shall not be deemed to establish a joint venture, partnership, association or fiduciary or similar relationship between Rekor or any affiliate thereof, on the one hand, and Customer or any affiliate thereof, on the other hand, for United States tax purposes or for any other purpose.
26. Further Assurances: The Parties shall furnish upon request to each other further information, execute and deliver to each other documents, and do other acts and things, all as another party may reasonably request for the purpose of giving effect to the intent or express terms of the Agreement and the



documents referred to in the Agreement; provided, that no party shall be obligated to incur any material liability, expense or obligation pursuant to this Section 26 without its consent.

27. Counterparts: The Agreement may be executed in counterparts, each of which is deemed an original, but all of which together is deemed to be one and the same agreement. A signed copy of the Agreement delivered by facsimile, e-mail or other mean of electronic transmission is deemed to have the same legal effect as delivery of an original signed copy of the Agreement.



DATA SERVICES SUBSCRIPTION SCHEDULE

This Data Services Subscription Schedule dated as of December 8, 2022 (the “**Data Services Subscription Schedule**”) to Master Data Services Subscription Agreement, effective as of December 8, 2022 between Rekor Recognition Systems, Inc. (“**Rekor**”) with an address of 6721 Columbia Gateway Drive, Suite 400, Columbia, MD 21046 and Plantation Police Department (“**Customer**”), with an address of 451 NW 70th Terrace Plantation, FL 33317.

This Data Services Subscription Schedule is entered into pursuant to the Agreement. Except to the extent expressly modified hereby, the Parties hereto by their execution and delivery hereof, reaffirm and incorporate herein by reference all of the terms, covenants and conditions of said Agreement as if such terms, covenants and conditions were fully set forth in this Data Services Subscription Schedule. All of the capitalized words used herein shall have the meanings ascribed to them in the Agreement unless otherwise expressly stated herein or therein.

1. Effective Date: Date of initial acceptance or operational usage of the Services by Customer.
2. Term: 60 Months from Effective Date with automatic annual renewals thereafter.
3. Services: Web-based access to the Rekor Scout SaaS application and related data services.
4. Equipment: 39 optical sensors, including associated processors, communications devices, brackets, and other hardware necessary for deployment. Also includes 4 Poles, 6 Solar Kits, and installation.
5. Annual Subscription Payment: \$46,800.00 (\$100.00 per optical sensor, per month years 2-5) \$90,400.00 due upfront, first year.
6. Additional Notes/Conditions:
 - a. Rekor retains the right, but not the obligation, to operate and maintain the Equipment, and to collect and utilize the De-Identified Data for a period of 12 months after termination of this Schedule or the Master Data Services Subscription Agreement, whichever is terminated later.
 - b. NA



7. Counterparts. This Data Services Subscription Schedule may be executed in counterparts, each of which is deemed an original, but all of which together is deemed to be one and the same agreement. A signed copy of this Data Services Subscription Schedule delivered by facsimile, e-mail or other means of electronic transmission is deemed to have the same legal effect as delivery of an original signed copy of this Data Services Subscription Schedule.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the parties have caused this Data Services Subscription Schedule to be executed by their duly authorized representatives as of the Effective Date.

REKOR RECOGNITION SYSTEMS, INC.

By: Robert Berman

Name: Robert Berman

Title: CEO

Email: rberman@rekor.ai

CUSTOMER

By: Nick Sortal

Name: Nick Sortal

Title: Mayor

Email: _____

Addendum to Master Data Services Subscription Agreement

Contract No. 009786

THIS ADDENDUM ("Addendum"), dated December 8th, 2022, shall be included as part of the **Master Data Services Subscription Agreement** ("Agreement") by and between the **City of Plantation** ("CUSTOMER"), a Florida municipal corporation located at 400 NW 73rd Avenue, Plantation, Florida 33317 and **Rekor Recognition Systems, Inc.**, a Delaware corporation, with a principal address of 6721 Columbia Gateway Drive, Suite 400, Columbia, MD 21046 ("Rekor"). CUSTOMER and Rekor shall be collectively referred to herein as the "Parties" and individually as a "Party".

WHEREAS, on October 25, 2021, the CUSTOMER issue RFQ No. 100-21; Automated License Plate Recognition System (ALPR) Standardization; and,

WHEREAS, Rekor responded to and has been recommended for award of contract(s) to provide the Equipment and Services as set forth in the RFQ, Rekor's response, including but not limited to forms for Public Records, E-Verify, and Scrutinized Companies, is incorporated in this Addendum by reference; and,

WHEREAS, the Parties desire to enter into the Agreement which sets forth the terms for CUSTOMER's use of Equipment and Services; and,

WHEREAS, this Addendum sets forth additional terms and conditions agreed upon by the Parties; and,

WHEREAS, should there be any conflict between the terms and conditions set forth in the Agreement, and this Addendum, this Addendum shall prevail and the order of precedence shall be as follows, this Addendum and the Agreement.

NOW, THEREFORE, the Parties agree the following provisions shall become an integral part of the Agreement between the Parties as follows:

1. **Payment Terms.** All payments shall be governed by the Local Government Prompt Payment Act, as set forth in Part VII, Chapter 218, Florida Statutes. All payments due from CUSTOMER and not made within the time specified by this section bear interest from 30 days after the due date at the rate of 1 percent per month on the unpaid balance. Rekor must invoice the CUSTOMER for any interest accrued in order to receive the interest payment.
2. **Insurance.** Rekor shall maintain general liability insurance, in one or more policies, with minimum coverage, in the aggregate, of at least \$1 million dollars combined single limit for Rekor. Coverage shall be primary, include a subrogation waiver as to the CUSTOMER, name the CUSTOMER as an additional named insured, and provide thirty (30) days written notice to the City in the event of cancellation or material change to the

coverage. Rekor shall provide the City with a certificate of insurance evidencing this coverage, subject to the approval of the CUSTOMER's Risk Management.

Cyberfirst/Professional Liability/Technology Insurance with a limit of liability no less than \$1,000,000 per loss. Coverage shall include liability arising from: professional acts, errors, or omissions of Rekor, communications and media liability, and network & information security liability (including virus transmission, denial of service, breach of privacy or confidentiality obligations). This coverage shall be maintained for a period of no less than the later of two (2) years after delivery of goods/services or final payment of the Agreement. Retroactive date, if any, to be no later than the first day of service to the CUSTOMER. **The City of Plantation must be shown as an additional insured with respect to this coverage.**

3. **Termination of Agreement.**

- a. CUSTOMER may, by written notice to Rekor, terminate the whole or any part of the Agreement after the initial term, without cause by giving written notice to Rekor of such termination, and specifying the effective date thereof, at least 120-calendar days before the effective date of such termination.
- b. CUSTOMER will have the right to terminate the Agreement in whole or in part if Rekor has materially breached the Agreement. The CUSTOMER will provide Rekor with one hundred and twenty (120) calendar day opportunity to cure any material breach, prior to the effective date of any termination for cause.

4. **Sovereign Immunity.** Nothing contained in this Addendum or in the Agreement is intended nor shall be construed to waive CUSTOMER's rights and immunities under the common law or Section 768.28, Florida Statutes, as may be amended from time to time. This obligation shall not be construed to negate, abridge, or otherwise reduce any other right or obligation of indemnity which would otherwise exist in the CUSTOMER's favor. Notwithstanding any other provision of this Addendum or in the Agreement to which it is applicable, CUSTOMER shall not be liable or responsible to CUSTOMER beyond the monetary limits and amounts specified in section. 768.28, Fla. Stat., regardless of whether said liability be based in tort, contract, indemnity or otherwise; and in no event shall CUSTOMER be liable to Rekor for punitive damages, consequential damages, attorney's

fees or cost associated with this Addendum or the Agreement or any dispute resolution hereafter.

5. **Notices:** Whenever any Party desires to give notice unto any other Party, it must be given by written notice, sent by certified United States mail, with return receipt requested, addressed to the Party for whom it is intended and the remaining Party, at the places last specified, and the places for giving of notice shall remain such until they shall have been changed by written notice in compliance with the provisions of this section. For the present, Rekor and CUSTOMER designate the following as the respective places for giving of notice:

CITY: Mayor
City of Plantation
400 NW 73rd Ave
Plantation, FL 33324

With a copy to: Chief Administrative Officer
City of Plantation
400 NW 73rd Avenue
Plantation, FL 33317

City Attorney
3099 E. Commercial Blvd., Suite 200
Fort Lauderdale, FL 33308

Rekor: Rekor Recognition Systems, Inc.
Attn: Robert Berman
6721 Columbia Gateway Drive, Suite 400
Columbia, MD 21046

6. **Access to Records.** Upon request and reasonable notice, CUSTOMER shall have reasonable access and the right to examine any and all Rekor books, documents, records, accounts and other evidence directly pertinent to performance under the Agreement and Addendum during the term of the Agreement during normal business hours, until the expiration of three (3) years after final payment hereunder unless all records are transferred to CUSTOMER upon termination of Agreement. As required by Ch. 119, Florida Statutes, records related to the Agreement and this Addendum may be public records open for inspection, unless an applicable exception applies, and shall be retained pursuant to the State of Florida General Records Schedule GS1-SL.
7. **Governing Law; Judicial Review; Venue.** This Addendum and the Agreement shall be governed by the laws of the State of Florida and venue shall be in Broward County without regard to its conflicts of law. The Parties hereby agree that in the event of any litigation between them, such proceeding shall be brought exclusively in the courts of the State of

Florida, County of Broward or the Federal District Court with subject matter jurisdiction and encompassing the County of Broward, Florida. Each Party hereby irrevocably consents and submits to the jurisdiction of, and venue in, the aforementioned courts, and further waives any claim that a proceeding brought therein has been brought in an inconvenient forum.

8. **Time of Essence.** Time is of the essence for each and every provision of this Addendum and the Agreement.
9. **Tax Exempt.** Rekor and CUSTOMER agree that CUSTOMER is a tax-exempt entity and not subject to the payment of taxes under the Agreement.
10. **No Third-Party Beneficiaries.** Except to the extent expressly provided for in this subsection, there are no intended third-party beneficiaries of any right or obligation assumed by the Parties. The City of Plantation has three dependent districts (Plantation Midtown Development District, Plantation Gateway, and the City of Plantation Community Redevelopment Agency) hereinafter "Districts", all of which have the power to execute contracts, and all of which are served by City personnel for the purpose of Administration. Such Districts shall be intended third Party beneficiaries and shall be able to enforce the terms hereof for any Serves provided on behalf of the Districts.
11. **Entire Agreement.** The Agreement, and this Addendum, and any subsequent amendments signed by the Parties hereto shall constitute the entire understanding of the Parties.

REKOR RECOGNITION SYSTEMS, INC.,
a Delaware corporation

Signed, sealed and delivered
in the presence of:

Signed By: [Signature]
Robert Berman, CEO

WITNESSES:

By: Mary Kuether
Print Name: Mary Kuether

By: Paula Pena
Print Name: Paula Pena

STATE OF Maryland
COUNTY OF Howard

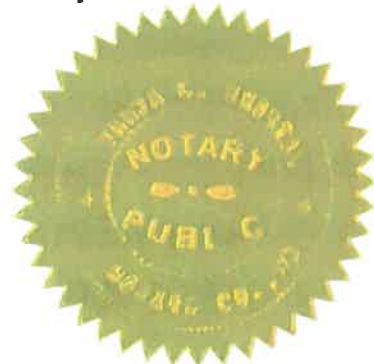
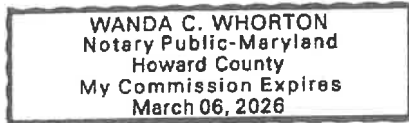
The foregoing instrument was acknowledged before me by means of ☐ physical presence
or ☐ online notarization, this 12/6/2020 (date) by Robert Berman as CEO of Rekora Recognition
Systems, Inc., a Delaware Corporation, on behalf of the corporation, who is personally known to
me or who has produced Driver License (type of identification) as identification.

Wanda C. Whorton
NOTARY PUBLIC, STATE OF Maryland

My commission number is:
March 6, 2026

Wanda C. Whorton
Printed Name of Notary

(Notary Seal)



IN WITNESS WHEREOF, the Parties hereto have read and executed this Addendum and have set their hands and seals this 8 day of December, 2022.

Attest: April Beggerow
April Beggerow, City Clerk

CITY OF PLANTATION

By: Nick Sortal
Nick Sortal, Mayor
400 N.W. 73rd Avenue
Plantation, Florida 33317

K. Reid
Witness
Kiamesha Ausmore-Reid
Typed Name of Witness

Olivia Gonzalez
Witness
Olivia Gonzalez
Typed Name of Witness

Approved as to Form:

By: Kerry L. Ezrol
Kerry L. Ezrol, City Attorney

STATE OF FLORIDA)
COUNTY OF BROWARD)

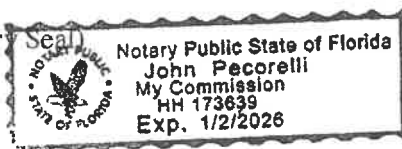
The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization this 8th day of DECEMBER, 2022, by, Lynn Stoner, Mayor, of the City of Plantation, Florida, on behalf of the CITY who is personally known to me or who has produced _____ (type of identification) as identification.

My commission number is: 1/2/2026

John Pecorelli
NOTARY PUBLIC, STATE OF FLORIDA

JOHN Pecorelli
Printed Name of Notary

(Notary Seal)



**Plantation City Council
Meeting Agenda**

**Notice of City Council
Meeting**

November 30, 2022



City of Plantation
City Council Chambers and via Zoom

COUNCIL APPROVED
DATE: 11 / 30 / 2022
Consent Agenda Item # 10
Epp C. Jff

Subject:

Automated License Plate Recognition System - Gateway District (Phase 1)

Summary:

Authorization and approval of the following: 1). Execution of the attached agreement and addendum associated with the subject project. Pending final approval from Rekor Recognition Systems, Inc and City's Administration. 2). Authorization and approval to process payment(s) to Rekor Recognition Systems, Inc for total annual amount of \$46,800.00. 3). Approval and authorization to enter into a 60 month (initial term) agreement from the effective date with automatic renewals thereafter. 4). To issue a purchase order and process payment(s) to Rekor Recognition System for a total amount of \$43,600.00 for installation (4) poles, (6) solar kits, and (39) cameras associated with the subject project.

Background:

Strategic Priority - Quality Customer Care

Police Department Information

An Automatic License Plate Recognition (ALPR) System is proposed for the Gateway District to provide enhanced security for the residents, business owners, and visitors by continuously monitoring the vehicles entering, leaving, and traversing the Gateway District. An ALPR system will allow the City to monitor activity and perform investigations; improving the overall safety of the Gateway District.

Procurement Information

On August 10, 2022, Consent Agenda Item No. 7, the City of Plantation City Council approved the standardization of all City Automated License Plate Recognition (ALPR) System Solutions

to Rekor Recognition Systems, Inc.

Approval of this standardization of all City Automated License Plate Recognition (ALPR) System Solutions to Rekor Recognition Systems, Inc will permit for the following:

- Waiving competitive bidding pursuant to Section 2-226(g)(14) of the City Code of Ordinances for the purchase of Automated License Plate Recognition (ALPR) System Solutions from Rekor Recognition Systems, Inc.
- Waiving the competitive procurement processes identified in section(s) 2-226(b), and 2-226(c) to request pricing/quote(s) from Rekor Recognition Systems, Inc for Automated License Plate Recognition (ALPR) System Solutions on an as-needed basis.
- All purchases of the specified equipment/software shall be subject to Section 2-226(d) of the City Code of Ordinances and be presented to City Council for approval.

Based upon the foregoing information, the Police, Administration, and Procurement Departments recommend authorization and approval of the following:

- Execution of the attached agreement and addendum associated with the subject project. Pending final approval from Rekor Recognition Systems, Inc and City's Administration.
- Authorization and approval to process payment(s) to Rekor Recognition Systems, Inc for total annual amount of \$46,800.00.
- Approval and authorization to enter into a 60 month (initial term) agreement from the effective date with automatic renewals thereafter.
- Authorization and approval to issue a purchase order and process payment(s) to Rekor Recognition System for a total amount of \$43,600.00 for (4) poles, (6) solar kits, and installation of (39) cameras associated with the subject project.

This item is now ready for City Council consideration.

Funding:

112-0000-529-3402 Outside Service fees \$5,600 for Installation of 39 cameras
112-0000-529-3402 Outside Service fees \$46,800 for yearly service payment
332-0000-529-6401 Capital Outlay: Machinery & Equipment \$38,000 for (4) poles and (6) solar panels.

Amount:

Year 1 - \$46,800.00

- Installation of (39) cameras, (6) solar kits, and (4) poles...\$43,600.00

Year 2 - \$46,800.00

Year 3 - \$46,800.00

Year 4 - \$46,800.00

Year 5 - \$46,800.00

Grand Total - **\$277,600.00**

Finance Director/Budget Manager Recommendation:

In FY2023 the Plantation Gateway Development District will be using Fund Balance to cover the cost of the Automated License Plate Recognition System. Going forward the yearly cost of these services (\$46,800) will be budged as normal through the annual budget process.

Prepared By:

George Barber

ATTACHMENTS:

[Rekor Master Subscription Agreement.pdf](#)

[Proposal for Additonal Work.pdf](#)

[AddendumtoRekorMasterDataServicesSubscriptionAgreement005424182xC4B6A.pdf](#)



Company Address 6721 Columbia Gateway Dr. Suite 400
Columbia, MD 21046
USA

Created Date 11/22/2022
Expiration Date 12/31/2022
Quote Number 00003719

Prepared By Robert Reid
Phone (301) 642-0995
Email rreid@rekor.ai

Bill To Name Plantation Police Department FL
Bill To 451 NW 70th Terrace
Plantation, FL 33317
US

Ship To Name Plantation Police Department FL

Product Code	Product	Quantity	Sales Price	Total Price
RKR-INST-POL	Installation: Pole	4.00	\$1,250.00	\$5,000.00
RKR-INST-SOL	Installation: Solar Kit	6.00	\$100.00	\$600.00
RKR-DATPH-5Y	Rekor Data Services Add-on: Pole Hurricane upfront	4.00	\$2,000.00	\$8,000.00
RKR-DATS-5Y	Rekor Data Services Add-on: Solar Kit upfront	6.00	\$5,000.00	\$30,000.00

Totals

Subtotal	\$43,600.00
Discount	0.00%
Total Price	\$43,600.00
Grand Total	\$43,600.00

Signature

- This quote is valid for 10 days from date of issuance
- Payments are due net 45 and payable upon receipt of invoice unless otherwise stipulated.
- Software license key(s) will be issued once payment is received

Signature: _____

Date: _____

Title: _____